

TECHNICAL, QUALITY, AND SUPPLY AGREEMENT

ENTERED INTO BY AND BETWEEN:

BASSANI HEALTH (PTY) LTD

(Reg No: . 2024/710124/07)

(Hereinafter referred to as "Bassani" or "Supplier")

AND

[_____]

(Reg No: _____)

(Hereinafter referred to as the "Customer")

1. SCOPE AND PURPOSE

1.1 This Agreement regulates the technical and quality assurance of pharmaceutical/health products (the "Products") manufactured by Bassani for the Customer.

1.2 The parties agree to comply with the **Medicines and Related Substances Act 101 of 1965**, SAHPRA guidelines, and current Good Manufacturing Practice (cGMP). In the event of a conflict between commercial and quality terms regarding patient safety or regulatory compliance, the quality terms shall prevail.

2. SUPPLY AND ORDERING

2.1 **Forecasts:** The Customer shall provide a rolling **[1 month]** non-binding forecast of Product requirements to Bassani on a monthly basis.

2.2 **Orders:** Firm orders must be placed via written Purchase Order (PO) at least **5** days prior to the requested delivery date. Bassani shall confirm acceptance of the PO within **1** business days.

2.3 **Price:** The Price of the Products shall be as set out in **Annexure A** (Price List). Prices are exclusive of VAT. Bassani may adjust prices annually with **7** days' written notice.

2.4 **Payment Terms:** Payment is due **before delivery**. Interest on overdue amounts shall accrue at the prime rate plus 2%.

2.5 **Delivery & Risk:** Delivery shall be from Bassani's facility. Risk in the Products passes to the Customer upon delivery/collection. Ownership passes only upon full payment.

3. QUALITY RESPONSIBILITIES OF BASSANI

3.1 **Licensing:** Bassani warrants it holds a valid SAHPRA Manufacturing License and complies with cGMP.

3.2 **Responsible Pharmacist:** Bassani's Responsible Pharmacist shall oversee manufacturing compliance and product release.

3.3 **Batch Release:** No batch shall be released for sale until the Responsible Pharmacist certifies compliance with the Master Batch Record (MBR) and specifications. A **Certificate of Analysis (CoA)** and **Certificate of Conformance (CoC)** shall accompany every shipment.

3.4 **Record Retention:** Bassani shall retain batch records for **five (5) years** or one year past the expiry date, whichever is longer.

4. RESPONSIBILITIES OF THE CUSTOMER

4.1 Regulatory Status: The Customer warrants they hold the necessary licenses (e.g., Section 22C license or Pharmacy License) to purchase and sell the Products in South Africa, or under the Section 21 process as per the Medicines Act

4.2 Storage & Distribution: Upon transfer of risk, the Customer assumes responsibility for Good Distribution Practice (GDP) and Good Pharmacy Practice (GPP), ensuring products are stored as per label instructions (e.g., <25°C).

5. CHANGE CONTROL AND DEVIATIONS

5.1 Major Changes: Bassani shall not implement changes affecting product quality, safety, or regulatory status (e.g., API source, primary packaging) without the Customer's prior written approval.

5.2 Deviations/OOS: Bassani must notify the Customer within **72 hours** of any critical deviation or Out of Specification (OOS) result impacting a distributed batch. Bassani is responsible for root cause analysis.

6. COMPLAINTS, RECALLS, AND PHARMACOVIGILANCE

6.1 Complaints: The Customer must forward quality complaints to Bassani within **48 hours**. Bassani shall investigate and respond within **15 business days**.

6.2 Recalls: In the event of a Class I, II, or III recall mandated by SAHPRA or voluntary recall: * The parties shall cooperate fully to retrieve the Product. * Bassani bears the cost if the recall is due to manufacturing defect/negligence. * The Customer bears the cost if due to improper storage/handling after delivery.

6.3 Adverse Events: The Customer is responsible for reporting Adverse Drug Reactions (ADRs) to SAHPRA but must inform Bassani immediately to allow for technical investigation.

7. AUDITS AND INSPECTIONS

7.1 Customer Audit: The Customer may audit Bassani's facility and Quality Management System (QMS) once every **24 months**, or "for cause" upon reasonable notice.

7.2 Regulatory Inspection: Bassani must notify the Customer immediately of any SAHPRA inspection directly impacting the Customer's products.

8. WARRANTY AND LIABILITY

8.1 **Warranty:** Bassani warrants that upon delivery, the Products: (a) conform to the Specifications; (b) are free from defects in material and workmanship; and (c) have a remaining shelf life of at least [**e.g., 75%**] of the total shelf life.

8.2 **Liability:** Neither party shall be liable for indirect or consequential loss (e.g., loss of profit). Bassani's total liability is limited to the value of the specific batch of Products giving rise to the claim, except in cases of gross negligence or willful misconduct.

9. TERM AND TERMINATION

9.1 This Agreement commences on the date of last signature and continues for **1 year**, renewing automatically unless terminated.

9.2 Either party may terminate for convenience with **3 months** written notice, or immediately for material breach (including regulatory non-compliance).

10. SIGNATURES

Signed for and on behalf of BASSANI HEALTH (PTY) LTD

Signature: _____

Name: _____

Designation: **Director / Responsible Pharmacist**

Date: _____

Signed for and on behalf of [CUSTOMER NAME]

Signature: _____

Name: _____

Designation: _____

Date: _____ *